

THE DRUGS AND COSMETICS ACT, 1940 (ACT NO. 23 OF 1940)

CHAPTER I: PRELIMINARY

Section 3(a): "Ayurvedic, Siddha or Unani drug" includes all medicines intended for internal or external use for or in the diagnosis, treatment, mitigation or prevention of disease or disorder in human beings or animals, and manufactured exclusively in accordance with the formulae described in, the authoritative books of Ayurvedic, Siddha and Unani Tibb systems of medicine, specified in the First Schedule.

Section 3(h): "patent or proprietary medicine" means:

- (i) in relation to Ayurvedic, Siddha or Unani Tibb systems of medicine all formulations containing only such ingredients mentioned in the formulae described in the authoritative books of Ayurvedic, Siddha or Unani Tibb systems of medicine specified in the First Schedule, but does not include a medicine which is administered by parenteral route and also a formulation included in the authoritative books as specified in clause (a);
- (ii) in relation to any other systems of medicine, a drug which is a remedy or prescription presented in a form ready for internal or external administration and not included in the Indian Pharmacopoeia.

CHAPTER IVA: PROVISIONS RELATING TO AYURVEDIC, SIDDHA AND UNANI DRUGS

Section 33A: Chapter not to apply to Ayurvedic, Siddha or Unani drugs - save as otherwise provided in this Act, nothing contained in Chapter IV shall apply to ASU drugs.

Section 33B: Application of Chapter IVA - this Chapter shall apply only to Ayurvedic, Siddha and Unani drugs.

Section 33C: Ayurvedic, Siddha and Unani Drugs Technical Advisory Board (ASUDTAB) - constituted to advise Central and State Governments on technical matters.

Section 33D: The Ayurvedic, Siddha and Unani Drugs Consultative Committee.

Section 33E: Misbranded drugs - if so coloured, coated, powdered or polished that damage is concealed, or if not labelled in the prescribed manner, or if label makes false/misleading claims.

Section 33EE: Adulterated drugs - contains filthy substance, insanitary manufacture, poisonous container, harmful/toxic substances.

Section 33EEA: Spurious drugs - manufactured under a name belonging to another drug, imitation, fictitious manufacturer, or substituted.

CHAPTER IVA (Continued): LICENSING AND ENFORCEMENT

Section 33EEB: Regulation of manufacture for sale of Ayurvedic, Siddha and Unani drugs - in accordance with prescribed standards.

Section 33EEC: Prohibition of manufacture and sale of certain Ayurvedic, Siddha and Unani drugs:

No person shall manufacture for sale or distribute:

- (a)(i) misbranded, adulterated or spurious ASU drug;
- (ii) patent or proprietary medicine, unless there is displayed in the prescribed manner on label or container the true list of all ingredients contained in it;
- (c) manufacture for sale except under, and in accordance with the conditions of, a licence issued for such purpose by the prescribed State Licensing Authority (Ayush SLA):

Provided that nothing in this section shall apply to Vaidyas and Hakims who manufacture Ayurvedic, Siddha or Unani drug for the use of their own patients.

Section 33EED: Power of Central Government to prohibit manufacture, sale, etc. of ASU drugs in public interest.

Section 33G: Inspectors and Section 33F: Government Analysts.

Section 33-I & 33J: Penalties for unauthorized manufacture, sale, and repeated offences.

THE FIRST SCHEDULE [See Section 3(a)]

AUTHORITATIVE BOOKS OF AYURVEDIC AND SIDDHA SYSTEMS

Ayurveda:

1. Arogya Kalpadruma, 2. Arka Prakasha, 3. Arya Bhishak, 4. Ashtanga Hridaya, 5. Ashtanga Samgraha, 6. Ayurveda Kalpadruma, 7. Ayurveda Prakasha, 8. Ayurveda Samgraha, 9. Bhaishajya Ratnavali, 10. Bharat Bhaishajya Ratnakara, 11. Bhava Prakasha, 12. Brihat Nighantu Ratnakara, 13. Charaka Samhita, 14. Chakra Datta, 15. Gada Nigraha, 16. Kupi Pakva Rasayana, 17. Nighantu Ratnakara, 18. Rasa Chandanshu, 19. Rasa Raja Sundara, 20. Rasaratna Samuchaya, 21. Rasatantra Sara Siddha Prayoga Samgraha, 21A. Rastantra Sar Va Siddha Prayog Samgraha Part II, 22. Rasa Tarangini, 23. Rasa Yoga Sagara, 24. Rasa Yoga Ratnakara, 25. Rasa Yoga Samgraha, 26. Rasendra Sara Samgraha, 27. Rasa Pradipika, 28. Sahasrayoga, 29. Sarvaroga Chikitsa Ratnam, 30. Sarvayoga Chikitsa Ratnam, 31. Sharangadhara Samhita, 32. Siddha Bhaishajya Manimala, 33. Siddha Yoga Samgraha, 34. Sushruta Samhita, 35. Vaidya Chintamani, 36. Vaidyaka Shabda Sindu, 37. Vaidyaka Chikitsa Sara, 38. Vaidya Jiwan, 39. Basava Rajeeyam, 40. Yoga Ratnakara, 41. Yoga Tarangini, 42. Yoga Chintamani, 43. Kashyapasamhita, 44. Bhelasamhita, 54A. Ayurvedic Formulary of India (AFI), 54C/54D. Ayurvedic Pharmacopoeia of India (API).